

LEGAL HOTLINE FAQ

Q1. What kind of assistance does the Legal Hotline (“Hotline”) offer?

A1. The Hotline is available for you to obtain general legal advice about human resources and employment law issues to help reduce your risk of employment law-related claims. It is limited to questions that are beyond the scope of the HR advice TriNet provides. The Hotline is an excellent place to initiate consideration of a decision, **but it is not** intended to replace the relationship your company should develop with experienced employment law counsel who can provide ongoing advice regarding employment issues.

If you appear to be using the Hotline in lieu of retaining Fisher Phillips for ongoing advice, as opposed to occasional questions covered by the Hotline, Fisher Phillips may require you to retain the firm in order to continue contacting them. TriNet clients may receive preferred rates when they retain Fisher Phillips.

Q2. What is the cost of the Legal Hotline?

A2. The Hotline is **free** for current TriNet clients.

Q3. Who provides services through the Legal Hotline?

A3. TriNet has partnered with the law firm Fisher Phillips (“Firm”) to provide the Legal Hotline to TriNet clients. Fisher Phillips is a national law firm with 37 offices and 550 attorneys across the U.S. For over 80 years, Fisher Phillips has represented employers in all aspects of workplace law, including:

- Harassment and discrimination employment litigation;
- Disability and leave management;
- Reductions in force;
- Affirmative action;
- Benefits;
- Immigration;
- Wage-hour;
- Trade secrets and restrictive covenants;
- Drug testing; and
- Labor relations.

The Firm maintains a [website](#) providing comprehensive information about these and other employment law topics.

Q4. Is Hotline advice kept confidential?

A4. Yes. Communications with Fisher Phillips will be protected by attorney-client privilege. Neither the details of the communications nor the advice given will be disclosed to others, including TriNet or your insurance carrier or broker without your prior permission. TriNet will only receive a report for each call which indicates your company name, your TriNet Client ID and a general description of the call topic. Fisher Phillips may share insights with TriNet about emerging issues, but not your call. This helps TriNet understand trends and better address client concerns.

Q5. How do I access the Hotline?

A5. You are encouraged to first escalate all issues you experience to TriNet. As your liaison and trusted advisor, TriNet will work with you to determine if we can help resolve your issue. If legal advice outside of TriNet's scope is requested or otherwise required to resolve your issue, TriNet will facilitate contact between you and Fisher Phillips.

Please Note: Your use of the Hotline is subject to a Fisher Phillips conflict check to ensure nothing precludes the Firm from speaking to you (e.g., representation of another Fisher Phillips client who is adverse to you in an unrelated matter).

Q6. After TriNet refers me to the Hotline, when can I expect to receive a response?

A6. You should expect to receive a response from a Fisher Phillips attorney to discuss the issue presented within 48 hours of referral by TriNet. In most cases, an attorney from the Fisher Phillips office closest to your location will return the call, but sometimes an attorney more familiar with the subject matter will call (e.g., a specialist in disability management, privacy, wage-hour or other high-risk areas).

Q7. What should I do if I do not receive a call from a Fisher Phillips attorney?

A7. If you do not receive a call from a Fisher Phillips attorney in response to TriNet's referral, you should reach back out to the TriNet colleague you spoke to when you requested the referral for assistance.

Q8. Is there a limit to the number of referrals I can have to the Hotline?

A8. No. However, each referral must pertain to a unique question. If the topic is the same as a previous referral, you may be charged a fee by Fisher Phillips for additional information.

Q9. What are examples of issues the Hotline addresses? Is there any limitation to the advice I can receive via the Hotline?

A9. The Hotline provides an excellent opportunity to obtain general legal information about a broad range of subjects. Please see the [Appendix](#) for examples of what is in scope and what is out of scope. Each call is generally limited to **no more than** 30 minutes. As previously noted, the Hotline is limited to questions that are beyond the scope of the HR advice TriNet provides. **The Hotline is not intended to provide answers as to whether any specific adverse personnel action should be taken.**

The Hotline does **not** include advice in connection with active litigation, reviewing or drafting documents, transactional or corporate work, legal research or on-going advice regarding the same matter.

Q10. Can I use the Hotline for employment law issues occurring outside the U.S.?

A10. Yes. However, the topic for referral **must** relate to an employee covered under your TriNet Services Requisition (TSR). (Employees covered under a TSR are referred to as "worksite employees").

For example: Questions regarding a worksite employee located in Canada or a worksite employee travelling to another country would be appropriate for a hotline referral. Questions about an employee **not** covered by a TSR in either situation would **not** be appropriate.

Q11. Can I report a discrimination claim or lawsuit to the Hotline?

A11. No. The Hotline **cannot** be used to report service of an administrative charge, arbitration demand, service of lawsuits or other notices of claim to an insurance carrier. **It is your responsibility to notify your agent/broker and TriNet in accordance with the terms of the insurance policy.**

Q12. Can I use Fisher Phillips as a fee-based service or speak with their attorneys a second time about the same topic?

A12. There is nothing preventing you from engaging Fisher Phillips on your own and paying any associated hourly rates charged by Fisher Phillips. TriNet has no pre-negotiated rates with Fisher Phillips. Please remember that if you have an EPLI claim, you need to report the claim to TriNet for any potential coverage under TriNet's EPLI policy.

Q13. Who can I contact with questions?

A13. If you have any questions, log in to TriNet (login.TriNet.com) and click Contact TriNet. If you are unable to log in, go to TriNet (login.TriNet.com) and select one of the following options: Forgot Password, Forgot ID, Unlock Account, Login Help.

Legal Hotline FAQs - Appendix

Please Note: This list is meant to provide examples and is not comprehensive.

1. Sexual or Other Forms of Harassment and Discrimination

In Scope:

- Learning what the Equal Employment Opportunity Commission and courts generally consider to be harassment or discrimination.
- Inquiring about steps to take when investigating reports of harassment, including suggestions for witness interviews; documentation of an internal complaint and witness interviews; development of a sexual harassment policy; and other preventive actions.

Out of Scope:

- Determining action to take after the investigation is conducted (e.g., should the alleged harasser be discharged?).

2. Promotion/Reinstatement After Leaves

In Scope:

- Identifying the factors to consider when evaluating the downside of denial of promotion.
- Obtaining information about when the law requires that a medical or Family Medical Leave Act (FMLA) covered leave should be granted and factors to consider when evaluating reinstatement (or an extended leave as a possible "reasonable accommodation").

Out of Scope:

- Determining whether it would be discriminatory for a worksite employee to be denied a promotion.
- Determining whether a worksite employee must be reinstated after a medical or family and medical leave.

3. Acts of Insubordination or Refusal to Comply with a Supervisor's Instructions

In Scope:

- Obtaining an overview of your company's rights with respect to the types of actions **it could consider** when an individual fails or refuses to perform their job duties (or poorly perform them).

Out of Scope:

- Determining whether a worksite employee can be discharged because they did not perform a specific task.

4. Wage and Hour Issues

In Scope:

- Inquiring when wages must be paid under state law, what types of time and pay records should be maintained, what exempt/non-exempt tests generally require, etc.

Out of Scope:

- Determining whether your company is complying with wage and hour laws or the way an individual should be paid.

5. What is a "disability" and what must be done if a worksite employee has a medical condition?

In Scope:

- Determining whether the FMLA or state leave laws apply to your company and how they generally should be administered.
- Discussing the interplay of leave laws and disability accommodation rules.

Out of Scope:

- Determining how a disability or medical condition should be accommodated and whether doing so would impose an undue hardship.

About TriNet

TriNet (NYSE: TNET) provides small and medium size businesses (SMBs) with full-service HR solutions tailored by, industry. To free SMBs from HR complexities, TriNet offers access to human capital expertise, benefits, risk mitigation and compliance, payroll and real-time technology. From Main Street to Wall Street, TriNet empowers SMBs to focus on what matters most—growing their business.

Go to **TriNet.com** to get started or speak with a TriNet representative at **888.874.6388**.